

Democratic and Popular Algerian Republic

Faculty of Medicine of Constantine

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**Module: Health, Society and Humanity**

**First Year Medicine**

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### **Course: Medical Law**

#### **Learning Objectives:**

1. Define health and law
2. List the different sources of law in Algeria
3. Enumerate the objectives of medical law
4. Identify the main practical situations:
  - Requisition
  - Medical confidentiality
  - General principles of medical liability
  - Failure to assist a person in danger
  - The care contract

#### **I. Introduction:**

Health is defined by the WHO as: "a state of complete physical, mental and social well-being, and not merely the absence of disease or infirmity."

Law is "the set of rules governing human conduct in society and social relations."

#### **II. History:**

Law is a very ancient principle, deeply embedded in society. Physicians have always been subject to the laws of each society. In the Middle Ages, the law of retaliation was applied: 'an eye for an eye, a tooth for a tooth.' The Babylonians had the Code of Hammurabi, alongside the deontological principles of the Hippocratic Oath and the Oath of Maimonides. Medical law has evolved, and specific laws have been developed to properly frame and regulate the practice of medicine.

#### **III. Sources of Law in Algeria:**

- The Constitution: which guarantees the autonomy and inviolability of the human person, and ensures the right to health protection.
- Health Law: the fundamental basic law governing all medical practice, defining what is legal and what is prohibited.
- The Penal Code: sanctions all offenses committed in the practice of medicine that are classified as criminal violations.
- The Civil Code: defines the framework of the care contract as a civil contract and the consequences in case of breach.

#### **IV. Objectives of Medical Law:**

- Show the legal scope of medical practice
- Define who may practice medicine in Algeria
- List the various authorized medical acts
- Define duties and essential rules during the performance of medical acts
- Establish sanctions for violations of the laws and rules governing medical practice

#### **V. Main Practical Situations:**

##### **1. Requisition:**

Definition: "Requisition is an injunction (a precise order) given to a physician by an administrative or judicial authority to carry out a specific medico-legal mission."

The requisitioned: any physician holding a degree and authorized to practice in Algeria.

Requisitioning authorities: judicial and administrative.

Purposes of requisition:

- Judicial requisition: issued when the expertise of a technician (physician) is required to obtain information likely to facilitate the exercise of public action or the prosecution of an offense, pursuant to Article 49 of the Code of Criminal Procedure.
- Administrative requisition: may be addressed to any person to ensure the continuity of public service; for example, replacing a physician to cover an emergency duty (Article 679, paragraph 2, of the Algerian Civil Code).

Various missions: examination of a corpse, examination of victims of assault and battery, sexual violence, blood sample collection, emergency duty coverage...

Algerian legislation: Health Law Articles 178 and 418; Algerian Penal Code Article 187 bis.

##### **2. Medical Confidentiality:**

Definition: Medical confidentiality is an obligation designed to safeguard individuals' health, allowing them to confide in a physician without their illness being disclosed to a third party. It is justified by the duty of discretion and respect for others. It creates and ensures a relationship of trust between the physician and the patient.

Foundations of medical confidentiality:

- The Constitution: guarantees the inviolability of the human body.
- The Hippocratic Oath: 'Admitted inside homes, my eyes will not see what takes place there; my tongue will keep secret the confidences entrusted to me...'
- Health Law 2018: Respect for the patient's dignity and protection of his/her personality and private life are guaranteed by PROFESSIONAL SECRECY, to which all physicians and dental surgeons are bound. The new health law enshrines this in Articles 24 and 169.
- The Code of Medical Ethics: Articles 36 to 41.
- The Algerian Penal Code: sanctions all physicians, surgeons, pharmacists, midwives, or any other person entrusted by state, profession or function, permanently or temporarily, with secrets, who — outside cases where the law compels or authorizes them to report — disclose such secrets.

Who is bound by confidentiality:

- Medical and care staff: physicians, nurses, medical students (interns and residents), midwives, dentists, pharmacists, as well as advisory, expert and control physicians.
- Non-medical staff: secretaries, orderlies, ambulance drivers...

Exceptions to confidentiality: births, deaths, notifiable diseases, occupational accidents, occupational diseases, involuntary commitment certificates...

Sanction for breach of medical confidentiality: Article 301 of the Algerian Penal Code.

### **3. General Principles of Medical Liability:**

Liability is a moral or legal obligation to answer for one's actions and to assume their consequences. Liability originates in fault.

Two types of liability exist:

- Criminal liability (sanction)
- Civil liability (compensation or redress)

Civil Liability:

Civil liability is a source of compensation. It is based on three criteria that the victim must prove:

1. A fault committed by the physician
2. Harm suffered by the patient
3. A causal link between the fault and the harm

Types of civil liability:

a) Contractual civil liability:

Arises from the medical contract, defined under civil law as 'a convention by which one or more persons bind themselves to another to give, do, or not do something.' In medicine, the contract is an agreement by which the patient expresses willingness to accept the care required by their

health condition, combined with the physician's willingness to provide it.

b) Tortious or quasi-tortious liability:

In tortious liability, the fault is intentional; in quasi-tortious liability, the fault is unintentional.

Liability of public hospital:

Called administrative civil liability; it concerns staff working in public hospitals, where compensation for damage caused by such staff falls upon the hospital (i.e., the public administration). This liability arises either from a fault committed by the staff, or sometimes without fault — such as equipment failure, nosocomial infection, or a therapeutic accident (non-fault medical accident).

Criminal Liability:

Behaviors defined by society as reprehensible are called offenses, enumerated in the Penal Code in three categories: contraventions, misdemeanors, and crimes.

Criminal liability is personal. Offenses that may be attributed to a physician in the exercise of their duties include:

- Intentional and unintentional assault and battery (Art. 264 and 288 of the Penal Code)
- Unauthorized practice of medicine, dentistry or pharmacy (Art. 243)
- Issuing fraudulent medical certificates (Art. 226)
- Breach of professional secrecy (Art. 301)
- Refusal to comply with a public authority requisition (Art. 187 bis)
- Failure to assist a person in peril (Art. 182/2)
- Failure to declare a birth (Art. 442)

#### **4. Failure to Assist a Person in Peril:**

The duty of assistance concerns every citizen, and more particularly physicians because of their profession and knowledge. It is a criminal offense under the Algerian Penal Code.

Legal references: Article 182/2 of the Algerian Penal Code; Articles 09 and 210 of the Code of Medical Ethics (a physician must provide emergency care to a person in danger or ensure they receive necessary care).

Elements constituting the offense:

1. State of peril: an imminent risk threatening the life or health of a living individual, requiring immediate intervention (emergency) — any delay endangers the victim's life.
2. Knowledge of the peril: either directly (on scene) or indirectly (e.g., by phone call).
3. Absence of risk to the intervening person.
4. Failure to provide assistance: either through direct personal action or by calling for emergency services.

Sanctions:

- Criminal: imprisonment of 3 to 5 years and/or a fine of 500 to 15,000 DA.

- Civil: tortious or quasi-tortious liability.
- Disciplinary sanctions.

## **5. The Care Contract:**

### Introduction:

In the landmark Mercier ruling of 1936, the Court of Cassation analyzed the relationship between the patient and the physician as contractual in nature. The physician undertakes to provide conscientious, attentive care consistent with current medical knowledge.

### Characteristics of the contract:

- Tacit: involves no formal commitment formula.
- Commutative: obligations are recognized for each party.
- Onerous: the patient pays fees to the physician.
- Terminable: the patient is free to change physician; the physician must ensure continuity of care.

### Conditions for validity of the contract:

1. Capacity to contract: The physician must meet the legal conditions for practicing medicine. The patient must be an adult; for a minor or legally incapacitated adult, capacity to contract is exercised by the legal guardian.
2. Consent: must be free and informed.
3. Lawful object: the proposed act must not be contrary to law; it must be medically necessary in the patient's interest.
4. Lawful cause.

### Obligations arising from the contract:

#### Physician's obligations:

- Provide care consistent with current scientific knowledge.
- Avoid exposing the patient to unjustified risk.
- Provide clear and honest information.
- Respect professional secrecy.

#### Patient's obligations:

- Follow medical prescriptions.
- Pay fees.

### Termination of the contract:

The contract normally ends with recovery from illness. However, early termination is possible — by the patient (changing physician), or by the physician (who must ensure continued medical follow-up and avoid interruption of prescriptions, and only outside emergencies).

### **Conclusion:**

Medical practice is governed by multiple codes, regulations and laws that define the limits of medical practice. Any physician who violates these regulations may incur liability on various levels: criminal, civil and disciplinary.